



January 20, 2023

Jorgen Andersson
Willis Towers Watson Northeast Inc.
Brookfield Place
200 Liberty Street, 6th Floor
New York, NY 10281

***EXCESS PRIVATE EQUITY LIABILITY
INSURANCE BINDER***

RE: EnCap Investments, L.P.

Dear Jorgen:

We are pleased to bind coverage pursuant to our indication. This Binder is subject to our receipt, review and acceptance of the following information:

1. Underlying Policies when issued and available.

<i>LIMIT OF LIABILITY EACH LOSS & AGGREGATE:</i> Defense Costs are Included in the Limit of Liability	\$10,000,000
<i>ATTACHMENT POINT:</i>	\$40,000,000
<i>RETENTION EACH LOSS:</i> (Per Policy Terms)	\$1,000,000 / \$250,000
<i>PREMIUM:</i>	\$105,856.00
<i>See Invoice for the date Premium is due and payable. Failure to pay the premium in full may result in voidance of coverage.</i>	
Premium does not include applicable taxes, fees, and surcharges.	

INSURED: **EnCap Investments, L.P.**
9651 Katy Freeway
Houston, TX 77024

INSURER: **Ironshore Indemnity Inc.**
An admitted carrier with an A.M. Best rating of A (Excellent) Class XIV

POLICY NUMBER: **DO6NAB5905002**

EXPIRING POLICY NUMBER: DO6NAB5905001

POLICY FORM: EXC.004; Edited (07.12.07) Excess Liability Insurance Policy

POLICY PERIOD: **January 23, 2023 To: July 23, 2024**

FOLLOWED POLICY INSURER: Berkshire Hathaway Specialty Insurance Company

FOLLOWED POLICY NUMBER: 42-EPF-301044-06

PENDING AND PRIOR DATE: January 23, 2009

COMMISSION PAYABLE: 15%



Confidential

RE: EnCap Investments, L.P.
TO: WILLIS TOWERS WATSON NORTHEAST INC
General Partnership Liability (PEL)
Insurance Binder - Excess
January 20, 2023

THE FOLLOWING ENDORSEMENTS WILL BE ADDED TO THE BASIC POLICY:

1. EDO TX (1007) Texas Amendatory Endorsement
2. IRON.END.ALL.006 (0317) Notice of Claim (via E-mail)
3. ADM-OFAC-0419 - Sanction Limitation and Exclusion Clause
4. EXS.END.005 (0911) Loss Payable Provision and Policy Terms Amended (Other Sources)
5. MANUSCRIPT: AUTOMATIC EXTENSION OF AGGREGATE LIMIT

This Binder supersedes any prior Binder or indication issued by us.

If additional materials and/or information is requested above then this binder shall be considered a temporary and conditional binder and is expressly contingent upon receipt, review and acceptance of the such additional information. We must receive all of the items requested above within thirty (30) days of the date of this binder. If all of the requested items are not received and approved by us prior to such date, this temporary and conditional Binder will automatically expire and shall be deemed void ab initio ("from the beginning") without further action or notice. Payment of premium shall not operate to extend the binding period or nullify the automatic voiding as described above.

Please note that if between the date of this Binder and the effective date of the policy there is any material change in the condition of the proposed insured or any event or occurrence which may be deemed to be a material change in underwriting exposure by us, the proposed insured shall provide us with the particulars of such change as soon as possible. If there is any such material change, we may at our option withdraw or modify this Binder by giving you written notice of such.

It is your agency's/brokerage's responsibility to conform to the Laws & Regulations of the applicable jurisdiction, including, but not limited to, payment of premium taxes, procuring of affidavits and compliance with surplus lines laws if applicable.

Premium is payable within 30 days of the effective date and should be remitted to:

Ironshore Indemnity Inc. Payment Remittance Instructions Please remit payments using the mailing address or wiring instructions provided below.
Mail Instructions for Checks: Ironshore Indemnity Inc. P.O. Box 734024 Chicago, IL 60673-4024
Overnight and Express Mail Instructions: JPMorgan Chase Attn: Ironshore Indemnity Inc. & Lockbox Number 734024 131 S. Dearborn, 6 th Floor Chicago, IL 60603
Wiring Instructions: Ironshore Indemnity Inc. JP Morgan Chase Bank 4 Chase Metrotech Center Brooklyn, NY 11245 Account # 352820408 ABA# 021000021 Swift Code: CHASUS33



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RE: EnCap Investments, L.P.
TO: WILLIS TOWERS WATSON NORTHEAST INC
General Partnership Liability (PEL)
Insurance Binder - Excess
January 20, 2023

Thank you for your consideration. If you have any questions or concerns, please feel free to give me a call.

Sincerely,

A handwritten signature in black ink that reads "Mark F. Reilly".

Mark Reilly
Senior Vice President
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Mobile: +1 (646) 627-3989
Email: mark.reilly@libertymutual.com

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